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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MONTANA
MISSOULA DIVISION

FREE SPEECH COALITION, INC.; DEEP CONNECTION TECHNOLOGIES, INC.; CHARYN PFEUFFER; JFF PUBLICATIONS, LLC; ANNA LOUISE PETERSON; LYNSEY GRISWOLD; PHE, INC.; AND CONVERGENCE HOLDINGS, INC.,

Plaintiffs,

v.

AUSTIN KNUDSEN, in his official capacity as Attorney General of the State of Montana

Defendant.

Case No. 9:24-cv-00067-DWM

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FOR THE DISTRICT OF MONTANA
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BRIEF IN SUPPORT OF DEFENDANT'S MOTION TO DISMISS PLAINTIFFS' COMPLAINT AND DEMAND FOR JURY TRIAL

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INTRODUCTION

INTRODUCTION

Like many states, Montana has long prohibited distributing obscene materials to minors. Mont. Code Ann. § 45-8-206. But there is a growing sense across the political aisle that given the "corroding influence [of pornography] on minors" this just isn't enough. The Montana legislature found that early exposure to pornography "contributes to the hypersexualization of teens," to "low self-esteem, body-image disorders," "problematic sexual behaviors," reduced "brain functioning and development," "emotional and medical illnesses," and "difficulty forming or maintaining positive, intimate relationships." Montana Senate Bill 544 ("SB544"), Preamble, https://perma.cc/N8R6-HZF5. To combat these concerns, the Montana Legislature passed SB544 to require commercial entities that publish or distribute online pornography, or similar content, to take reasonable steps to verify the age of their customers before displaying content that is materially harmful to minors. But nothing in SB544 prohibits anyone from performing in, producing, or publishing online pornography, nor does it prohibit anyone from accessing it. Plaintiffs—a nonprofit trade association and several individuals and entities—sued, claiming that SB544 facially violates the First and Fourteenth Amendments, the Commerce Clause, and the Supremacy Clause. But they fail to state a claim for relief on any of these theories, so this Court should dismiss their complaint.

First and Fourteenth Amendments, the Commerce Clause, and the Supremacy Clause. But they fail to state a claim for relief on any of these theories, so this Court should dismiss their complaint.

BACKGROUND

SB544 regulates only "commercial entit[ies][1] that knowingly and intentionally publish[] or distribute[] material harmful to minors on the internet from a website that contains a substantial portion of the material," §1(1), which is defined as "more than 33 1/3% of total material on a website," §1(7)(i). Those regulated entities "must perform reasonable age verification methods" to limit their material to adults. §1(1). SB544 defines "material harmful to minors" by adding "with respect to minors" or "for minors" to *Miller*'s test for obscenity.[2] SB544, §1(7)(d) ; *see also Miller v. California*, 413 U.S. 15, 24 (1973).

Regulated entities may select their preferred "reasonable age verification methods," including "government-issued identification," §1(7)(h)(ii)(A), a "digitized identification card[s]," or "any commercially

[1] SB544 defines "[c]ommercial entity" as "corporations, limited liability companies, partnerships, limited partnerships, sole proprietorships, or other legally recognized entities." §1(7)(a).

[2] This brief cites SB544 using the following formulation to indicate section, subsubsection and so on: "§1(7)(d)."

SB544 regulates only "commercial entit[ies]" that knowingly and intentionally publish[] or distribute[] material harmful to minors on the internet from a website that contains a substantial portion of the material," §1(1), which is defined as "more than 33 1/3% of total material on a website," §1(7)(i). Those regulated entities "must perform reasonable age verification methods" to limit their material to adults. §1(1). SB544 defines "material harmful to minors" by adding "with respect to minors" or "for minors" to Miller's test for obscenity. SB544, §1(7)(d); *see also Miller v. California*, 413 U.S. 15, 24 (1973). Regulated entities may select their preferred "reasonable age verification methods," including "government-issued identification," §1(7)(h)(ii)(A), a "digitized identification card[s]," or "any commercially reasonable method that relies on public or private transactional data,"[3] *see* §1(7)(h)(i), (ii)(B). Whoever performs the "required age verification may not retain any identifying information of the individual after access has been granted to the material." §1(2).

[3] SB544 defines "transactional data" as "a sequence of information that documents an exchange, agreement, or transfer between an individual, commercial entity, or third party used for the purpose of satisfying a request or event." §(1)(7)(j). This data may include "records from mortgage, education, and employment entities." *Id.*

reasonable method that relies on public or private transactional data,"[3] may not retain any identifying information of the individual after access has been granted to the material." §1(2).

SB544 also exempts some content and entities. First, it doesn't apply to "any bona fide news or public interest": "broadcast," "website video," "report," or "event." §1(4). Second, it "may not be construed to affect the rights of any news-gathering organization," §(1)(4), which it defines as an employee of a print, online, or mobile platform "newspaper, news publication, or news source … of current news and public interest," §(1)(7)(f)(i), and an employee of a "radio broadcast station, television broadcast station, cable television operator, or wire service," §(1)(7)(f)(ii).[4]

SB544 provides affected individuals a civil damages remedy if a covered entity refuses or fails to "perform reasonable age verification

minors," *see* Compl., ECF No. 1, ¶12; (2) four entities; and (3) three individuals,

[3] SB544 defines "transactional data" as "a sequence of information that documents an exchange, agreement, or transfer between an individual, commercial entity, or third party used for the purpose of satisfying a request or event." §(1)(7)(j). This data may include "records from mortgage, education, and employment entities." *Id.*

[4] The "news-gathering organization" exemption applies only to employees while they are operating as employees, and it requires the employee to document his or her employment. §(1)(7)(f)(i)-(ii).

Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009). But a "formulaic recitation of the elements of a cause of action will not do," *id.* (citation omitted), nor will "conclusory allegations of law" suffice to defeat a motion to dismiss, *Benavidez v. Cnty. of San Diego*, 993 F.3d 1134, 1145 (9th Cir. 2021).

Plaintiffs raising facial challenges on First Amendment or vagueness grounds, must show a significant number of "realistic" unconstitutional applications of the statute that are "substantially disproportionate to the statute's lawful sweep." *United States v. Hansen*, 599 U.S. 762, 770 (2023); *cf. United States v. Williams*, 553 U.S. 285, 304 (2008) (vagueness). For all other facial challenges, Plaintiffs must show that "no set of circumstances exists under which the [statute] would be valid." *Id.* at 769 (quoting *United States v. Salerno*, 481 U.S. 739, 745 (1987)).

ARGUMENT

To state a claim under §1983, Plaintiffs must allege that "a person acting under the color of State law" violated "a right secured by the Constitution or laws of the United States." *Benavidez*, 993 F.3d at 1144.

LEGAL STANDARD

To survive a motion to dismiss under Rule 12(b)(6), a complaint must allege "enough facts to state a claim to relief that is plausible on its face," *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)—where plausibility requires "factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged," *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). But a "formulaic recitation of the elements of a cause of action will not do," *id.* (citation omitted), nor will "conclusory allegations of law" suffice to defeat a motion to dismiss, *Benavidez v. Cnty. of San Diego*, 993 F.3d 1134, 1145 (9th Cir. 2021). Plaintiffs raising facial challenges on First Amendment or vagueness grounds, must show a significant number of "realistic" unconstitutional applications of the statute that are "substantially disproportionate to the statute's lawful sweep." *United States v. Hansen*, 599 U.S. 762, 770 (2023); *cf. United States v. Williams*, 553 U.S. 285, 304 (2008) (vagueness). For all other facial challenges, Plaintiffs must show that "no set of circumstances exists under which the [statute] would be valid." *Id.* at 769 (quoting *United States v. Salerno*, 481 U.S. 739, 745 (1987)).

ARGUMENT

To state a claim under §1983, Plaintiffs must allege that "a person acting under the color of State law" violated "a right secured by the Constitution or laws of the United States." *Benavidez*, 993 F.3d at 1144.

[5] The same plausibility requirements apply to motions to dismiss under Rule 12(b)(1) for failure to allege standing. *See Peace Ranch, LLC v. Bonta*, 93 F.4th 482, 486-88 (9th Cir. 2024).

"intersection of pornography, feminism, and sexuality," *id.* ¶¶ 17, 23, 26 ("Individuals").

I. Plaintiffs fail to allege a plausible First Amendment claim.

A. The First Amendment doesn't protect content that is obscene for minors.

Obscenity is notoriously unclear area of law, but this much is settled: obscene content is unprotected by the First Amendment and may be regulated. *Miller*, 413 U.S. at 23. That's what SB544 does. It applies to "material harmful to minors," *see* §1(1), (7)(d), which SB544 defines to track *Miller*'s definition of obscenity tailored to minors.

The Supreme Court has recognized time and again that state legislatures may pass laws that protect minors from material that is "obscene as to youths." *Erznoznik v. City of Jacksonville*, 422 U.S. 205, 213 (1975); *Sable Commc'ns of Cal., Inc. v. FCC*, 492 U.S. 115, 126 (1986). And this rule recognizes the commonsense truth that courts must "adjus[t] the definition of obscenity to social realities," including that some material that's appropriate for adults isn't appropriate for minors. *Brown v. Ent. Merchants Ass'n*, 564 U.S. 786, 793-94 (2011) (quoting *Ginsberg v. State of New York*, 390 U.S. 629, 638 (1968)).

Neither *Reno v. ACLU*, 521 U.S. 844 (1997), nor *Ashcroft v. ACLU*, 542 U.S. 656 (2004), hold otherwise. *Reno* considered a challenge to the Communications Decency Act ("CDA") that criminalized sending or

displaying lewd messages in ways that would be available to minors. 521 U.S. at 859. And it held the CDA provision unconstitutionally overbroad because it omitted *Miller*'s requirement that obscenity must relate to "sexual conduct." *Id.* at 870, 873. But SB544 neither criminalizes pornography nor omits this requirement from *Miller*—it merely limits the distribution *to minors* of content that's *obscene to minors*. *See* §1(1). So SB544 doesn't suppress anything, let alone "a large amount of speech that adults have a constitutional right to receive." *Reno*, 521 U.S. at 874.

Ashcroft fares no better despite minor similarities between SB544 and the federal Child Online Protection Act ("COPA") at issue there. To begin, *Brown v. Entertainment Merchants Ass'n* reaffirmed after *Ashcroft* that states may protect minors from content obscene as to minors even if adults have a First Amendment right to view that content. *See* 564 U.S. at 793-94. And SB544 and COPA function quite differently. COPA criminalized the posting of internet content, for "commercial purposes," that is "harmful to minors." *Ashcroft*, 542 U.S. at 661. But unlike COPA, SB544 isn't enforced by criminal penalties, *id.*; it's enforced by private civil actions and civil enforcement actions initiated by Montana's Attorney General. It imposes no limitation *at all* on the creation of obscene

distribution to minors of content that's obscene to minors. *See* §1(1). So SB544 doesn't suppress anything, let alone "a large amounts of speech that adults have a constitutional right to receive." *Reno*, 521 U.S. at 874.

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CONCLUSION

This Court should grant Defendant's Motion to Dismiss in full.

DATED: June 24, 2024

DATED this 24th day of June, 2024.

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CERTIFICATE OF COMPLIANCE

Pursuant to Rule Local Rule 7.1(d)(2), I certify that this brief is printed with a proportionately spaced Century Schoolbook text typeface of 14 points; is double-spaced except for footnotes and for quoted and indented material; and the word count calculated by Microsoft Word for Windows is 6,496 words, excluding tables of content and authority, certificate of service, certificate of compliance, and exhibit index.

/s/ Peter M. Torstensen, Jr.
/s/ *Peter M. Torstensen, Jr.*
PETER M. TORSTENSEN, JR.

CERTIFICATE OF SERVICE

I hereby certify that on this date, an accurate copy of the foregoing document was served electronically through the Court's CM/ECF system on registered counsel.

Dated: June 24, 2024

/s/ Peter M. Torstensen, Jr.
Peter M. Torstensen, Jr.

Dated: June 24, 2024

/s/ *Peter M. Torstensen, Jr.*
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